SM01 SIMONIS & MILUTIN

Short reply

Simonis and Milutin, 1299: what the two pages prove, and what they don't

Reply to Kaldellis, A Cabinet of Byzantine Curiosities (Oxford UP), p. 12, and Fine, The Late Medieval Balkans (Univ. of Michigan Press), p. 222

The marriage is a documented fact and needs no denial. But the very pages shown say it violated Church rules, and that the court had to get round the objection with a clever loophole. Byzantine law set minimum marriage ages (Justinian: 12 for girls, 14 for boys; Ecloga: 13 and 15), and Gregoras says Simonis was to be raised in Milutin's household until the customary time of marriage. The Church's eventual concession was a political climb-down by rulers and clergy, a fair criticism of them, not a Christian rule that five-year-olds may marry. Only one chronicler, Gregoras, reports abuse, at age eight, and he does not date it to the wedding.

WHAT THE SOURCES DO ESTABLISH

- Simonis was five when offered (Gregoras; Pachymeres: *not yet past her sixth year*); Milutin was in his forties (Gregoras: forty) or, per Kaldellis, fifty.
- The Church objected (Fine: *too young* and a fourth marriage); Pachymeres lists her immaturity among the obstacles and says the patriarch was bypassed.
- It was overridden for a peace treaty: the argument *at least officially satisfied the Church* (Fine).
- Milutin is venerated as a saint (OCA, 30 October).
- Gregoras: intercourse when she was eight, injuring her womb.

WHAT THEY DO NOT ESTABLISH

- **That Orthodox teaching prescribed or allowed child marriage.** Law and canons set higher ages, and both authors say the marriage broke Church rules.
- **That anyone argued a five-year-old could properly be wed.** The loophole answers only the fourth-marriage objection; for her age the plan was to wait.
- **That abuse happened "immediately"** (Kaldellis, citing *some sources*). The only source I found is Gregoras: age eight, no date for the wedding.

Fair concessions. The Church did give way, and Milutin was later made a saint; "the Church rejected it completely" would be too strong. The claim that survives is narrower: this was a rulers' act, not a doctrine. Details, sources and limits in SM02–SM06.

Quotations in the highlighted phrases are from the photographed pages, transcribed by me.

The two pages, transcribed

Highlighted passages as in the photos; words marked in orange are the ones that matter

KALDELLIS, *A CABINET OF BYZANTINE CURIOSITIES*, P. 12
Oxford UP; a popular book of "strange tales and surprising facts". The photographed passage is a single paragraph.

> She was five years old and Milutin was fifty, but the real problem was that he had already married three times, so this would be his fourth, which violated Church rules. The court came up with a clever loophole: as wife #1 had been alive when Milutin took wives #2 and #3, the latter had not been real wives after all. But wife #1 had died in the meantime, which meant that Milutin was now free to marry Simonis as wife #2.

> The question of her age was apparently not important. According to some sources, Milutin immediately consummated the marriage, leaving Simonis unable to bear children.

FINE, *THE LATE MEDIEVAL BALKANS*, P. 222
University of Michigan Press; a scholarly survey of the period.

> The only available bride fitting the bill was Andronicus' five-year-old daughter Simonida. So, Andronicus offered her to Milutin. At this point the negotiations, already threatened by serious opposition in Serbia, acquired strong resistance from the Byzantine Church.

> ... the Byzantine Church felt the proposed marriage between Simonida and Milutin violated Church canons. Not only was she too young, but fourth marriages were completely forbidden by the Church, and she was about to become Milutin's fourth wife. The Byzantine court eventually overcame this objection with an elegant piece of sophistry. Since Milutin's first wife had been alive at the time he contracted marriages two and three, those two marriages were in fact not marriages at all. However, now in 1299, since by then wife number one had died, Simonida could go to Serbia and become the second wife of the lonely widower. This reasoning at least officially satisfied the Church, so the marriage was carried out and the peace concluded.

Read closely.

1. Both authors call it a breach of Church rules or canons. On the central point the photos support the reply, not the attack.
2. The "loophole" answers only the fourth-marriage objection. Neither page reports an argument that a five-year-old could properly be married.
3. They differ on age: Fine lists *too young* among the Church's objections; Kaldellis says it was *apparently not important*, to the court.
4. "Immediately" is Kaldellis' wording of what *some sources* say; his endnote is not in the photo. The only source I found for any consumption is Gregoras (SM03).

Short reply

What the fourteenth-century chroniclers actually say

Pachymeres and Gregoras, Greek text with my translation; the lines in the table were read on the page images

SOURCE	GREEK (BONN EDITION, PAGE IMAGE)	ENGLISH (MY TRANSLATION)
Pachymeres (contemporary; d. c. 1310), *De Andronico Palaeologo*, Bonn ed. II, **p. 273**	ζῶσα γὰρ ἡ προτέρα τὰς ἐπιγενομένας παρανόμους ἀπήλεγχεν … ἡ προτέρα τεθνηκυῖα ἠκούετο … τῶν ἐν τῷ μεταξὺ ὡς νόθων ἀπηλλοτριωμένων	For while the first wife lived she showed the later ones to be unlawful … it was reported that the first had died … the ones in between being set aside as illegitimate. **→ The "loophole", in a contemporary's words.**
Pachymeres, Bonn II, **p. 275** (§31)	ἦν οὖν πάνυ ἀστεῖον τοῦτο τὸ θυγάτριον, οὔπω τὸν ἕκτον παραλλάττον ἐνιαυτόν	This little daughter was very charming, not yet past her sixth year. **→ Her age when the match was made.**
Pachymeres, Bonn II, **pp. 279–280**	ἥ τ᾽ ἀφηλικίωσις τῆς νεάνιδος … οὔτ᾽ ἐκοινοῦτο τῷ πατριάρχῃ τὴν πρᾶξιν … πατριάρχης δ᾽ αὖθις ὑβριοπαθῶν ἴσως ὑπερφρονούμενος	… the girl's immaturity [one of the obstacles the emperor weighed] … nor did he consult the patriarch about the affair … and the patriarch, in turn, felt insulted, perhaps at being disregarded. **→ The patriarch was bypassed, not persuaded.**
Gregoras (mid-14th c.), *Historia* VI.9, Bonn I, **p. 203**	πέμπτον τῆς ἡλικίας ἀγούσης ἔτος, ἵν᾽ ὑπ᾽ ἐκείνῳ λαβόντι τρέφοιτο, μέχρις ἂν ἐς τὸν νομιζόμενον ἔλθῃ τοῦ γάμου χρόνον κἄπειτα εἴη σύζυγος αὐτῷ	… in her fifth year, so that, taken in by him, she might be raised until she reached the customary time of marriage, and then be his wife. **→ The formal plan was to wait. No "twelve" is named.**
Gregoras, VII.5, Bonn I, **p. 243**	τῇ μὲν γὰρ θυγατρὶ ὀκταετεῖ πλέον ἢ τετταρακον[…]της ὁ Κράλης μιγεὶς βλαβῆναι τὴν ταύτης πέπραχε μήτραν, ὡς μηδὲ γονὴν ἐξ ἐκείνης ἔτι δύνασθαι γίγνεσθαι	For the Kral, more than forty years old, having had intercourse with the eight-year-old daughter, brought it about that her womb was injured, so that no offspring could any longer come from her. **→ The abuse allegation: age eight, no date given for the wedding.**

Weight and discrepancies. Pachymeres is a contemporary and, in the pages read, says nothing of intercourse or injury. Gregoras wrote decades later and is the only source I found for the abuse. He also calls her an infant (βρέφος, p. 204) when she left for Serbia and gives Milutin's age as forty, "about five years older" than the emperor, not fifty. Neither discrepancy excuses the marriage; both are worth knowing before quoting Kaldellis' round figures.

Simonis and Milutin (1299): a short reply to two book pages
Pachymeres, *De Michaele et Andronico Palaeologis*, ed. I. Bekker, vol. 2 (Bonn, 1835); Gregoras, *Byzantina historia*, ed. Schopen–Bekker, vol. 1 (Bonn, 1829); scans on archive.org. The smudge in the p. 243 line hides two letters of "forty".

SM04 SIMONIS & MILUTIN

Short reply

What Byzantine law and the canons say about age

Checked against the texts; where the guide was wrong or I could not confirm, it says so

RULE	WHAT IT SAYS	SOURCE	CHECK
Justinian, *Institutes* 1.22 pr.	Puberty in males "immediately on the completion of the fourteenth year"; females "fit for marriage after completing their twelfth year".	Sandars transl. (1876)	**Verified.** The guide cited 1.10, which gives no number.
***Digest* 23.2.4 (Pomponius)**	A girl married under twelve becomes a lawful wife only once she has completed twelve years with her husband.	Latin text; my translation	**Verified.** Note: this tolerated a child bride in the husband's house but made twelve the threshold.
***Digest* 23.1.14 (Modestinus)**	Betrothal is valid if neither party is younger than seven.	Latin text; my translation	**Verified.** Simonis (five) was below it; whether later Byzantine codes kept the rule, not checked.
***Ecloga* (726), tit. II**	"for a man at fifteen and for a woman at thirteen years of age".	Freshfield (1926), via Fordham; Greek in Zachariä (1852)	**Verified** in both.
***Prochiron* (c. 870)**	Marriage ages: not read. Its marriage title is, per the 1895 concordance, taken from the Ecloga (15/13); tit. VI.1 uses 14/12 for minors' wills.	Brandileone–Puntoni (1895)	**Not confirmed.** The guide's "12/14" is not in what I could read.
Milaš, *Orthodox Church Law* §181	"The Church adopted these years [14 and 12] for marriage, and made them law through several synodal decisions."	English text on a web site	**As stated by Milaš.** His cite "Prochiron IV, 2" points to a chapter on dowry.
Meyendorff, *Dumbarton Oaks Papers* 44 (1990), p. 103	"The minimum age for marriage was fixed ... to fourteen for men and twelve for women, but diplomatic requirements sometimes made this rule flexible." And: Milutin married Simonis "when she was only five (1299)".	DOP 44, p. 103	**Verified.** An Orthodox scholar concedes the flexibility.
Tome of Union (920): fourth marriage	"Totally forbidding a fourth marriage", with strict limits on a third.	Meyendorff, DOP 44, p. 102	**Secondary;** the Greek Tome was not read.

Reading. Every age rule I could read puts the minimum for marriage at twelve or thirteen for girls; five was below all of them, and below the Digest's betrothal minimum. The practice bent for diplomacy, as Meyendorff admits: that is the *political concession* point, not a doctrine. I found no Orthodox canon or council citing the Simonis marriage as a precedent (a negative result from a limited search).

Simonis and Milutin (1299): a short reply to two book pages
Institutes: gutenberg.org/ebooks/5983. Digest 23: thelatinlibrary.com. Ecloga: sourcebooks.web.fordham.edu/source/byz-marr726.asp and archive.org (eclogaleonisetc00linggoog). Milaš: royalarchives.org. Meyendorff: archive.org (DOP44_07_Meyendorff).

Short reply

A saint's act is not a precept, and the Aisha comparison

The logic of the reply, with its limits

MILUTIN THE SAINT

The OCA commemorates St Stephen Milutin on 30 October and says his relics were found incorrupt. Its short life does not mention the marriages, which proves nothing either way.

OrthodoxWiki: *"Saints are not thought of as either perfect or infallible."* (A reference wiki, not a synodal text.)

So: veneration does not make every act of the saint a precept. But a defence that says the Church rejected him entirely would also be wrong.

THE SYLLOGISM

P1. To show that a religion prescribes or permits a conduct, it is not enough that one of its rulers or members practised it.

P2. Simonis' marriage was arranged by Christian rulers against the age minima of Byzantine law and over Church objections (Fine; Pachymeres); it was not an ordinary application of the marriage rules.

C. So the case does not show that Orthodox Christianity prescribed or approved marrying five-year-olds. It does show rulers and clergy who gave way.

IF IT IS TURNED ON AISHA

The distinction is between **a ruler's act** and **a normative precedent**. To compare fairly, ask what authority each tradition gives the act and how its jurists read it:

Ibn Hazm (d. 1064), *al-Muhalla*, q. 1826: *"The proof that a father may marry off his young virgin daughter is Abu Bakr's marriage of the Prophet to Aisha when she was six … whoever claims it was exclusive is not heeded."*

Ibn Shubruma (d. 8th c., as reported by Ibn Hazm): a father may not marry off a young daughter until she reaches puberty and consents; Aisha's case was *particular to the Prophet.*

So the Aisha precedent was itself debated as law inside Islam. For Simonis I found no Orthodox text that does this.

Two cautions.

1. "Others did it too" shows nothing about right or wrong, in either direction.
2. The Aisha question stands on its own evidence; this slide only shows why the two cases are not the same kind of case.

Simonis and Milutin (1299): a short reply to two book pages
OCA: oca.org/saints/lives/2017/10/30/103118-saint-stephen-milutin-of-serbia. OrthodoxWiki, "Saint". Ibn Hazm, *al-Muhalla* vol. 9, pp. 38–40 (OpenITI Shamela0000767; page numbers deduced from the OpenITI markers). Translations mine.

SM06 SIMONIS & MILUTIN

Short reply

What was checked, what was corrected, what could not be

An honest account of the method and its limits

CORRECTIONS TO THE GUIDE PASTED WITH THE PHOTOS

- **Justinian's ages** are in *Inst.* 1.22 pr. and *Dig.* 23.2.4, not *Inst.* 1.10.
- **Prochiron "12/14"**: not confirmed; its marriage title seems to come from the Ecloga (15/13).
- **"Wait until twelve"** is not in Gregoras: he says *the customary time of marriage*. (The Digest does give twelve.)
- **"Immediately"** (Kaldellis): Gregoras gives age eight and no date for the wedding.
- **Milutin "fifty"**: Gregoras says forty, about five years older than the emperor.
- **"Fourth wife"**: sources disagree on Simonis' rank; I would not cite a number.
- **Milaš** cites Prochiron IV,2 for the ages, but that chapter is on dowry.
- **Patriarch**: Pachymeres says he was not consulted and took offence. That Failler (1990) says the conflict continued after the ceremony, and that Kosmas resigned over it, I could not verify.

NOT VERIFIED, AND LIMITS

- **Fine p. 222 and Kaldellis p. 12**: read only from your photos; Kaldellis' endnote is not visible.
- **Not obtained**: Georgievska-Shine (1993) and Failler (1990) (not found / PDF refused); Lascaratos & Poulakou-Rebelakou (2000), abstract only: premature marriages used to cover rape, even in imperial families; it does not name Simonis.
- **Not read**: Prochiron title II, the Greek of the Tome of Union, Danilo II's *Life of Milutin*, Metochites' own account.
- **Negative result**: no Orthodox text found citing Simonis as precedent (weak OCR search).
- **Greek**: lines in SM03 read on Bonn page images (pp. 203–204, 243, 273, 275, 279–280, 285); translations mine. Pachymeres' book number is ambiguous in the scans (running heads "L. III" and "L. IV"), so I cite pages.
- **Web sources** (OCA, OrthodoxWiki, Wikipedia, a Serbian state portal) are secondary; Milutin's death is dated 1320 or 1321 depending on the source.
- Four small AI research agents gathered the material in parallel; I re-read the key page images myself.

> **Bottom line.** The accusation has solid historical ground against particular rulers and against institutions that gave way. It is not evidence that Orthodox Christianity taught the conduct as a moral or religious norm. Do not dispute the books' authenticity: they are real and relevant.